

		The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client. Moving attorney to provide notice.
3.	30-2022-01296297 Atkins vs. TLH Enterprises, LLC	Motion for Leave to Amend The Motion for Leave to Amend brought by Plaintiff Sonia Atkins is DENIED. Plaintiff neglected to attach a proposed pleading, as required by California Rules of Court rule 3.1324. (Cal. Rules of Court rule 3.1324(a)(1); See also <i>Hataishi v. First American Home Buyers Protection Corp.</i> (2014) 223 Cal.App.4th 1454, 1469.) The Court notes, however, that both Plaintiffs have submitted Declarations which indicate their desire to remove “John Doe” and the Defendants “Does 1-100” from the Complaint. (¶6 of Sonia Atkins Declaration and ¶4-¶6 of Christopher Atkins Declaration.) The Court is inclined to treat this motion and the attached declarations as a written request for dismissal of said defendants made pursuant to Code of Civil Procedure section 581, subdivision (b)(1) and to grant the same. “An action may be dismissed...[w]ith or without prejudice, upon written request of the plaintiff to the clerk, filed with papers in the case, or by oral or written request to the court at any time before the actual commencement of trial, upon payment of the costs, if any.” (Code Civ. Proc., § 581, subd. (b)(1).) “The proposition that a trial court may construe a motion bearing one label as a different type of motion is one that has existed for many decades.” (<i>Sole Energy Co. v. Petrominerals Corp.</i> (2005) 128 Cal.App.4th 187, 193.) “ ‘The nature of a motion is determined by the nature of the relief sought, not by the label attached to it.’ ” (<i>Ibid.</i>) Based on the above, and consistent with Plaintiffs’ request, John Doe and Doe Defendants 1-100 are ORDERED dismissed, without prejudice. Court to give notice.
4.	30-2022-01282583 Arend vs. Coast Community College District	Motion to Compel Compliance with Deposition Subpoena Defendant Coast Community College District’s (“District”) motion to compel Nonparty CalOptima Health (“CalOptima”) to comply with the District’s Deposition Subpoena for Production of Business Records pertaining to CalOptima’s treatment of Plaintiff Veronica Arend is CONTINUED to May 29, 2025 at 1:30 p.m. in Department C34. The Proof of Service filed in connection with CalOptima’s Objection to the Motion to compel Production of Records does not list Moving Party Defendant Coast Community College District (“District”) on the Service List. (See ROA 219.) The District did not file a Reply and instead filed a Notice of Non-Opposition (ROA 223), suggesting that the District was not served with the Objection/Opposition. CalOptima shall serve the District with a copy of the Objection and the accompanying Declaration filed as nos. 219 and 220 in the Register of Actions within 7 days of service of this order. The District may file a reply in accordance with the Code of Civil Procedure. Defendant Coast Community College District to give notice.

5.	30-2024-01413861 City of Laguna s. Hong	Motion to Appoint Receiver Plaintiff/Petitioner City of Laguna Beach (“Plaintiff” or the “City”) petitions the Court for an order appointing GS Strategies, Inc. as receiver to rehabilitate the real property located at 988 Noria Street pursuant to Health & Safety Code section 17980.7. Alternatively, the City requests a preliminary injunction ordering Defendant/Respondent Luis Hong (“Defendant”) to bring the property up to code within 60 days. A receivership is a harsh, time-consuming, expensive and potentially unjust remedy and thus is available only where a more “delicate,” alternative remedy (i.e., injunction, writ of possession, attachment, provisional director, lis pendens, and other enforcement of judgment mechanisms) is inadequate. (See <i>City & County of San Francisco v. Daley</i> (1993) 16 Cal.App.4th 734, 745; <i>Medipro Med. Staffing LLC v. Certified Nursing Registry, Inc.</i> (2021) 60 Cal.App.5th 622, 628-629.) Since a receivership is an equitable remedy, the equitable considerations in an injunction proceeding apply—i.e., there must be a showing of irreparable injury and inadequacy of other remedies. (<i>Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp.</i> (1953) 116 Cal.App.2d 869, 872.) On 4/4/23, a Notice of Violation for Unpermitted Construction/Maintenance Issues was issued and mailed to Defendant via first class mail. (Declaration of Nicole Bovey ¶ 10.) Two more Notices of Violations were issued in May and June of 2023. (Id. ¶¶ 11-12.) The property was inspected on 4/18/24 and a Legal Notice and Order to Repair or Abate was issued on 5/6/24, directing Defendant to repair unsafe conditions such as the rotted and structurally unsound deck, unpermitted electrical and plumbing modifications, unpermitted bathroom and kitchen construction, dilapidated interior walls, and signs of possible mold. (Id. ¶¶ 15-16.) As of the date this Motion was filed, the dangerous substandard conditions at the property continued to exist. (Id. ¶ 25.) Defendant purchased the property with the intention of remodeling and selling it. (Declaration of Luis Hong ¶ 5.) When he discovered that his intended repairs would require permitting, he thought it may be more beneficial to significantly remodel the property prior to selling it. (Id. ¶ 7.) Around that time, he fell ill and spent time in the hospital and his mother also fell ill in late 2023, requiring him to spend extended periods of time abroad. (Id. ¶¶ 8-9.) He then decided to try and sell the property in April 2024 instead of doing any remodel because he decided the project was too much to deal with. (Id. ¶ 10.) Since being served with the Complaint, he has communicated with Ms. Bovey regarding the work required to bring the property up to code and has taken some action, such as removing a satellite dish and adding padlocks to access doors. (Id. ¶¶ 11-25.) Further, though no formal plans have been submitted, Defendant has provided the City with three sets of plans for review. (Declaration of Kate Kazama ¶¶ 5, 7.) Under the current circumstances, it appears that Defendant is taking concrete steps to work with the City to address the hazard concerns with the property. While the City contends that Defendant has been aware of the nuisance conditions since 2021, the first notice of violation was not issued until 2023. Defendant has certainly delayed in addressing the City’s concerns. However, the Court notes that some health issues contributed to that delay and it seems that he is now working with the City in good faith. In this light, the Court finds a receiver, which is “harsh,” time-consuming, and expensive, to be unwarranted at this time.
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